
This act summary is provided for the convenience of the public and members of the General Assembly. It is intended to provide a general summary of the act and may not be exhaustive. It has been prepared by the staff of the Office of Legislative Counsel without input from members of the General Assembly. It is not intended to aid in the interpretation of legislation or to serve as a source of legislative intent.

Act No. 136 (H.657). An act relating to various programming and requirements within the Department for Children and Families

Subjects: Human services; vital records; child welfare services; medical care; unaccompanied homeless youth; receipt of benefits

This act makes miscellaneous changes to programming and services operated or overseen by the Department for Children and Families. First, it eliminates the \$9,000 asset limit in the Reach Up program.

Next, effective July 1, 2027, it prohibits the Department from using a foster child's Social Security benefits to cover the costs of the foster child's current and reasonably foreseeable needs, except as necessary to preserve a child's eligibility for Supplemental Security Income (SSI). It further authorizes the Department, upon request of the foster child or care provider, to use a foster child's Social Security benefits for unmet needs above those the State is obligated or agrees to pay. It also requires the Department to establish an account for each beneficiary child, which must be a qualified ABLE account for any foster child receiving SSI benefits; to monitor resource limitations to maintain a foster child's SSI eligibility; to conserve each foster child's benefits or apply benefits to the foster child's unmet needs above those the State is obligated or agrees to pay; to appeal any denied application for SSI benefits; and to provide an annual accounting of benefits use, application, or conservation.

This act establishes an unaccompanied youth certificate that an unaccompanied youth may obtain from one of the following entities when certain conditions are met: a school district homeless liaison or other appropriate staff person; the director of an emergency shelter program funded by the State; the director of a runaway or homeless youth program funded by the U.S. Department of Health and Human Services or the U.S. Department of Housing and Urban Development or designee; a continuum of care lead agency or designee; the Chief Juvenile Defender or designee; or the Vermont Network Against Domestic and Sexual Violence or designee. An unaccompanied youth may use the certificate to obtain services without parent or guardian permission, such as procuring a learner's permit, a vital record, health care, housing and shelter services, a student loan, and automobile insurance.

This act requires the Commissioner of the Department for Children and Families to ensure that reasonable measures are taken to transport a child in the Department's custody in a manner that prevents physical and psychological harm. It requires the Department to ensure that law enforcement and other professionals comply with statutory requirements for the transport of children, including that if restraint is necessary, soft restraints be used unless the safety of the child or others requires the use of alternatives. It also requires documentation on the use of restraint during transportation and reporting on the use of restraint to the General Assembly.

This act prohibits a program operated or under contract with the Department from using or authorizing the use of prone restraints, mechanical restraints, chemical restraints, or strip searches on a child, with limited exceptions. It also prohibits the use of seclusion or physical restraint for punishment, discipline, the protection of property, or any reason other than as a safety measure of last resort or to prevent a serious and imminent risk of harm to the child or others. This act governs documentation, supervision, and notice related to the use of seclusion or restraint on children in a program that is operated or under contract with the Department. As of July 1, 2028, the act applies restrictions pertaining to seclusion and restraint to out-of-state programs under contract with the Department.

Lastly, this act establishes the Parental Engagement and Family Support Working Group to examine the Department's practice of using a pregnancy calendar to monitor and track certain pregnant individuals in Vermont and to provide recommendations on alternatives to a pregnancy calendar and ways to support individuals in need of services.

Multiple effective dates, beginning on June 15, 2026